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167 (CA5 2009)). The Court of Appeals reasoned that Tolan failed to overcome the qualified-immunity bar because “an objectively-reasonable officer in Sergeant Cotton’s position could have . . . believed” that Tolan “presented an ‘immediate threat to the safety of the officers.’” 713 F. 3d, at 307.³ In support of this conclusion, the court relied on the following facts: The front porch had been “dimly-lit”; Tolan’s mother had “refus[ed] orders to remain quiet and calm”; and Tolan’s words had amounted to a “verba[l] threa[t].” *Ibid.* Most critically, the court also relied on the purported fact that Tolan was “moving to intervene in” Cotton’s handling of his mother, *id.*, at 305, and that Cotton therefore could reasonably have feared for his life, *id.*, at 307. Accordingly, the court held, Cotton did not violate clearly established law in shooting Tolan.

The Fifth Circuit denied rehearing en banc. 538 Fed. Appx. 374 (2013). Three judges voted to grant rehearing. Judge Dennis filed a dissent, contending that the panel opinion “fail[ed] to address evidence that, when viewed in the light most favorable to the plaintiff, creates genuine issues of material fact as to whether an objective officer in Cotton’s position could have reasonably and objectively believed that [Tolan] posed an immediate, significant threat of substantial injury to him.” *Id.*, at 377.

II

A

In resolving questions of qualified immunity at summary judgment, courts engage in a two-pronged inquiry. The first asks whether the facts, “[t]aken in the light most favor-

³Tolan argues that the Fifth Circuit incorrectly analyzed the reasonableness of Sergeant Cotton’s beliefs under the second prong of the qualified-immunity analysis rather than the first. See Pet. for Cert. 12, 20. Because we rule in Tolan’s favor on the narrow ground that the Fifth Circuit erred in its application of the summary judgment standard, we express no view as to Tolan’s additional argument.

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able to the party asserting the injury, . . . show the officer's conduct violated a [federal] right[.]" *Saucier v. Katz*, 533 U.S. 194, 201 (2001). When a plaintiff alleges excessive force during an investigation or arrest, the federal right at issue is the Fourth Amendment right against unreasonable seizures. *Graham v. Connor*, 490 U.S. 386, 394 (1989). The inquiry into whether this right was violated requires a balancing of "the nature and quality of the intrusion on the individual's Fourth Amendment interests against the importance of the governmental interests alleged to justify the intrusion.'" *Tennessee v. Garner*, 471 U.S. 1, 8 (1985); see *Graham, supra*, at 396.

The second prong of the qualified-immunity analysis asks whether the right in question was "clearly established" at the time of the violation. *Hope v. Pelzer*, 536 U.S. 730, 739 (2002). Governmental actors are "shielded from liability for civil damages if their actions did not violate 'clearly established statutory or constitutional rights of which a reasonable person would have known.'" *Ibid.* "[T]he salient question . . . is whether the state of the law" at the time of an incident provided "fair warning" to the defendants "that their alleged [conduct] was unconstitutional." *Id.*, at 741.

Courts have discretion to decide the order in which to engage these two prongs. *Pearson v. Callahan*, 555 U.S. 223, 236 (2009). But under either prong, courts may not resolve genuine disputes of fact in favor of the party seeking summary judgment. See *Brosseau v. Haugen*, 543 U.S. 194, 195, n. 2 (2004) (*per curiam*); *Saucier, supra*, at 201; *Hope, supra*, at 733, n. 1. This is not a rule specific to qualified immunity; it is simply an application of the more general rule that a "judge's function" at summary judgment is not "to weigh the evidence and determine the truth of the matter but to determine whether there is a genuine issue for trial." *Anderson*, 477 U.S., at 249. Summary judgment is appropriate only if "the movant shows that there is no genuine issue as to any material fact and the movant is entitled to

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judgment as a matter of law.” Fed. Rule Civ. Proc. 56(a). In making that determination, a court must view the evidence “in the light most favorable to the opposing party.” *Adickes v. S. H. Kress & Co.*, 398 U.S. 144, 157 (1970); see also *Anderson*, *supra*, at 255.

Our qualified-immunity cases illustrate the importance of drawing inferences in favor of the nonmovant, even when, as here, a court decides only the clearly established prong of the standard. In cases alleging unreasonable searches or seizures, we have instructed that courts should define the “clearly established” right at issue on the basis of the “specific context of the case.” *Saucier*, *supra*, at 201; see also *Anderson v. Creighton*, 483 U.S. 635, 640–641 (1987). Accordingly, courts must take care not to define a case’s “context” in a manner that imports genuinely disputed factual propositions. See *Brosseau*, *supra*, at 195, 198 (inquiring as to whether conduct violated clearly established law “‘in light of the specific context of the case’” and construing “facts . . . in a light most favorable to” the nonmovant).

B

In holding that Cotton’s actions did not violate clearly established law, the Fifth Circuit failed to view the evidence at summary judgment in the light most favorable to Tolan with respect to the central facts of this case. By failing to credit evidence that contradicted some of its key factual conclusions, the court improperly “weigh[ed] the evidence” and resolved disputed issues in favor of the moving party, *Anderson*, 477 U.S., at 249.

First, the court relied on its view that at the time of the shooting, the Tolans’ front porch was “dimly-lit.” 713 F. 3d, at 307. The court appears to have drawn this assessment from Cotton’s statements in a deposition that when he fired at Tolan, the porch was “‘fairly dark,’” and lit by a gas lamp that was “‘decorative.’” *Id.*, at 302. In his own deposition, however, Tolan’s father was asked whether the gas lamp was

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in fact “more decorative than illuminating.” Record 1552. He said that it was not. *Ibid.* Moreover, Tolan stated in his deposition that two floodlights shone on the driveway during the incident, *id.*, at 2496, and Cotton acknowledged that there were two motion-activated lights in front of the house. *Id.*, at 1034. And Tolan confirmed that at the time of the shooting, he was “not in darkness.” *Id.*, at 2498–2499.

Second, the Fifth Circuit stated that Tolan’s mother “refus[ed] orders to remain quiet and calm,” thereby “compound[ing]” Cotton’s belief that Tolan “presented an immediate threat to the safety of the officers.” 713 F. 3d, at 307 (internal quotation marks omitted). But here, too, the court did not credit directly contradictory evidence. Although the parties agree that Tolan’s mother repeatedly informed officers that Tolan was her son, that she lived in the home in front of which he had parked, and that the vehicle he had been driving belonged to her and her husband, there is a dispute as to how calmly she provided this information. Cotton stated during his deposition that Tolan’s mother was “very agitated” when she spoke to the officers. Record 1032–1033. By contrast, Tolan’s mother testified at Cotton’s criminal trial that she was neither “aggravated” nor “agitated.” *Id.*, at 2075, 2077.

Third, the court concluded that Tolan was “shouting,” 713 F. 3d, at 306, 308, and “verbally threatening” the officer, *id.*, at 307, in the moments before the shooting. The court noted, and the parties agree, that while Cotton was grabbing the arm of his mother, Tolan told Cotton, “[G]et your fucking hands off my mom.” Record 1928. But Tolan testified that he “was not screaming.” *Id.*, at 2544. And a jury could reasonably infer that his words, in context, did not amount to a statement of intent to inflict harm. Cf. *United States v. White*, 258 F. 3d 374, 383 (CA5 2001) (“A threat imports ‘[a] communicated intent to inflict physical or other harm’” (quoting Black’s Law Dictionary 1480 (6th ed. 1990))); *Morris v. Noe*, 672 F. 3d 1185, 1196 (CA10 2012) (inferring that the